

26STCV05470 26STCV05470

County: los-angeles

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Case Number: 26STCV05470 Hearing Date: September 28, 2026 Dept: 307

20 TENTATIVE RULING 9:00 a.m., Monday, Sept. 28, 2026

KEITH

FEDER, M.D., INC. v. CEDARS SINAI HEALTH VENTURES [26STCV05470]

DEFENDANT

CEDARS-SINAI MEDICAL CENTER'S DEMURRER TO THE FIRST AMENDED COMPLAINT

MEET AND

CONFER: DEFECTIVE Counsel

met and conferred on August 28 in compliance with Code Civ. Proc. § 430.41. (Bauch Supp. Decl., ¶ 2.)

BACKGROUND:

FAC alleges claims for negligent misrepresentation and promissory estoppel in connection with medical billing dispute

TIMELINE:

4/2/2021 to 10/30/2023: Plaintiff Keith Feder, M.D., Inc. ("Plaintiff" or the "Medical Provider") provides injections, consultations, and surgeries to Patient J.B. (the "Patient") to treat the Patient's medical condition. The Patient was an insured, member, policyholder, or certificate-holder of insurance through a policy issued and underwritten by Defendant Cedars-Sinai Medical Center ("Defendant" or "Cedars").

4/1/2022 and 2/8/2023: The Medical Provider's employee, J.E., calls and speaks with Defendant's representatives, Chris and

Verna S., respectively. In connection with the calls, Defendant Anthem Blue Cross Life and Health Insurance Co. ("Anthem") (acting as an agent on behalf of Cedars) represents to the Medical Provider that Cedars would pay the UCR (usual, customary, and reasonable) rate for the Medical Provider's services to the Patient and Defendant's payment would not be based on the Medicare Fee Schedule.

Unknown Date: After the Patient's procedure, the Medical Provider submits to Cedars (through Anthem) all billing information required by Cedars and Anthem, including operative reports, chart notes, and other medical records for the Patient. The Medical Provider's billing submissions totaled \$87,650.00, but Anthem (acting on behalf of Cedars) only paid a total of \$8,906.22— well below the UCR amount promised by Anthem/Cedars.

2/19/2026: Plaintiff files the Complaint. The operative First Amended Complaint ("FAC"), filed 7/29/2026, alleges causes of action for:

1. Negligent Misrepresentation

2. Promissory Estoppel

8/27/2026: Cedars files this Demurrer, which is followed by Plaintiff's Opposition (9/10/2026) and Cedars's Reply (9/18/2026).

TENTATIVE

RULING: DEFENDANT CEDARS-SINAI MEDICAL CENTER'S DEMURRER TO THE FIRST AMENDED COMPLAINT is OVERRULED.

DEMURRER

Cedars demurs to both causes of action in the FAC pursuant to Code of Civil Procedure section 430.10, subds. (e) and (f). Plaintiff asserts two causes of action against Cedars: (1) negligent misrepresentation and (2) promissory estoppel. (See FAC, generally.) Plaintiff's justifiable reliance on Defendant's statements is an essential element of both claims. (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239, 1252 ["The elements of a negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable

reliance on the misrepresentation, and (5) resulting damage.”]; US Ecology, Inc. v. State of California (2005) 129 Cal.App.4th 887, 901 [“The elements of a promissory estoppel claim are ‘(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.’”].)

Here, Cedars argues that the entire FAC is defective because Plaintiff could not have reasonably relied on Defendant’s telephone representations in April 2022 and February 2023, given that Plaintiff had already begun treating the Patient in April 2021 before Defendant’s representations were made. Specifically, Plaintiff alleges that it “relied on and provided services solely based on Defendant’s statements, promises and representations” and “provided services based solely on those promises and representations.” (FAC, ¶ 40.) Defendant’s alleged misrepresentations/promises occurred in phone calls on April 1, 2022 and February 8, 2023. (Id. ¶¶ 24, 26.) However, Plaintiff simultaneously alleges that the Patient began receiving treatment from the Medical Provider on April 2, 2021, almost one year before the first alleged communication between Plaintiff and Anthem on behalf of Cedars. (Id. ¶ 23.) Cedars argues that the inconsistency between Plaintiff’s allegations of reliance and the alleged timeline of the Patient’s treatment from the Medical Provider precludes Cedars from determining “what statements Plaintiff alleges it relied upon, and/or what actions it claims to have taken based on them.” (Mot., at p. 7.)

Plaintiff

responds that Cedars ignores the entire period of treatment alleged in the FAC, which includes treatments both before and after Cedars’s alleged misrepresentations/promises to the Medical Provider. Indeed, Plaintiff alleges that the Patient continued receiving services from the Medical Provider until October 30, 2023, over 18 months after the first phone call and almost nine months after the second phone call. (FAC, ¶¶ 23-24, 26.) At minimum, Cedars fails to meaningfully challenge the reliance element of both causes of action with respect to the Medical Provider’s treatment services that were provided on or after April 1, 2022. (Id. ¶ 24.) As Plaintiff correctly points out, a general demurrer ordinarily “does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.” (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 856, fn. 14 (Elder).)

Furthermore,

“demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, internal citations omitted.) Here, there is no genuine uncertainty regarding the timeline of the Medical Provider's services. It can reasonably be inferred that Plaintiff is alleging that it continued performing services for the Patient after April 1, 2022 in reliance on Cedars's billing and reimbursement-related representations through Anthem. (FAC, ¶¶ 28, 31, 33, 48-49, 55-58.) Whether Plaintiff was justified in relying on Defendant's representations when performing the Patient's treatments after April 1, 2022 and whether Plaintiff's damages request is limited to only those specific services are factual questions that are not suitable for resolution on the pleadings. (Id. ¶¶ 41-43; see Alliance Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1238 [“Except in the rare case where the undisputed facts leave no room for a reasonable difference of opinion, the question of whether a plaintiff's reliance is reasonable is a question of fact.”].) Based on the facts and dates pleaded on the face of the FAC, the Court finds that Plaintiff has alleged sufficient information to enable Cedars to determine the “nature, source, and extent” of Plaintiff's claims and reasonably respond thereto. (Elder, supra, 205 Cal.App.4th at p. 858.) Accepting the allegations in the FAC as true, Plaintiff has alleged sufficient facts to plead the reliance element of both claims asserted against Cedars.

Therefore,

Cedars's demurrer to the FAC is OVERRULED.

Defendant Cedars-Sinai Medical Center to serve notice of ruling. This tentative ruling (“TR”) shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 9/24/26 at 2 p.m.